

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Purchased:

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A.L., AN INFANT BY MOTHER AND NATURAL
GUARDIAN ILONA LOYTERSHTEYN, AND J. L., AN
INFANT BY HIS MOTHER AND NATURAL
GUARDIAN ILONA LOYTERSHTEYN, AND ILONA
LOYTERSHTEIN INDIVIDUALLY

SUMMONS

Plaintiff designates KINGS
County as the place of trial.

Plaintiff(s),

The basis of venue is:
CPLR 503 (a)

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND P.O. ALEXIS REALENEGO

Defendant(s).

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
November 3, 2021

Law Offices of William Pager
Attorneys for Plaintiff(s)

A.L., AN INFANT BY MOTHER AND
NATURAL GUARDIAN ILONA
LOYTERSHTEYN, AND J. L., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN
ILONA LOYTERSHTEYN, AND ILONA
LOYTERSHTEIN INDIVIDUALLY
203-205 Kings Highway
Brooklyn, New York 11223
718-998-1010
Our File No. 4210IM

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10001

P.O. ALEXIS REALENEGO
1 Police Plaza
New York, NY 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GUARDIAN ILONA LOYTERSHTEYN, AND ILONA
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VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT AND P.O. ALEXIS REALENEGO

Defendant(s).

-----X

Plaintiff, by their attorneys, **LAW OFFICES OF WILLIAM PAGER**, as and for their
Verified Complaint, states as follows:

1. At all times hereinafter mentioned, Plaintiff **ILONA LOYTERSHTEYN** was, and still is, a resident of the County of Kings and State of New York.

2. At all times hereinafter mentioned, **ILONA LOYTERSHTEYN** was, and still is, the mother and natural guardian of the Infant-Plaintiff **J.L.** and a resident of the County of Kings and State of New York.

3. At all times hereinafter mentioned, Plaintiff **ILONA LOYTERSHTEYN** was, and still is, the mother and natural guardian of the Infant-Plaintiff **A.L.** and a resident of the County of Kings and State of New York.

4. At all times hereinafter mentioned the Defendant **THE CITY OF NEW YORK**, (hereinafter referred to as "CITY" or defendant), is on information and belief is a municipal corporation duly organized and/or registered and/or chartered by the State of New York and has

designated the Corporation Counsel of the City of New York to accept service at 100 Church Street, New York, NY 10007.

5. That at all times hereinafter mentioned, the Defendant, **CITY OF NEW YORK** on information and belief was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

6. At all times hereinafter mentioned, the Defendant **NEW YORK CITY POLICE DEPARTMENT** is a statutory entity existing pursuant to the laws of the State of New York and a department of the City of New York..

7. At all times hereinafter mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** maintains a police force.

8. At all times hereinafter mentioned, Defendant **P.O. ALEXIS REALENEGO** was employed as a police officer in the Defendant **NEW YORK CITY POLICE DEPARTMENT** and was acting within the scope of his employment.

9. At all times hereinafter mentioned, Defendant **ALEXIS REALENEGO** was employed as a police officer in the Defendant **NEW YORK CITY POLICE DEPARTMENT** and was acting within the scope of his employment.

10. That on April 19, 2021, at approximately 4:18p.m., Plaintiff **ILONA LOYTERSHTEIN** was falsely arrested by the Defendants herein.

11. That the Defendant, **CITY OF NEW YORK, The NYC Police Department** their agents, servants and/or employees including but not limited to P.O. Alexis Realenego, acted with intent to and did arrest the plaintiff on April 19, 2021 at approximately 4:18 p.m. in front of the Oakley Car Wash on 25 Neptune Avenue in Brooklyn, New York..

12. That the Plaintiff, without her consent or just cause, was taken into custody, arrested, and held against her will, for several hours, and in front of her crying children, Infant-Plaintiff **J.L.** and Infant-Plaintiff **A.L.**, until she was released on the same day.

13. On the aforesaid time, Plaintiff **ILONA LOYTERSHTein** was assaulted by members of the police department here.

14. At the aforesaid time and place, Plaintiff **ILONA LOYTERSHTein** was assaulted by the Defendant herein.

15. At the aforesaid time and place, Plaintiff **ILONA LOYTERSHTein** was falsely imprisoned without due cause.

16. At the aforesaid time and place, Defendants, used excessive force in assaulting the Plaintiff **ILONA LOYTERSHTein** herein.

17. At the aforesaid time and place, Defendants violated Plaintiff's **ILONA LOYTERSHTein** constitutional rights in depriving her of her freedom and causing injury to her person without just cause.

18. That the defendants did not have reasonable cause to believe that the Plaintiff **ILONA LOYTERSHTein** committed such acts and/or crimes to warrant arrest and or other wrongful acts committed by the defendants, that ensued.

19. At no time herein, did Plaintiff **ILONA LOYTERSHTein** engage in any action which would justify the arrest, assault and other wrongful acts towards the Plaintiff herein.

20. Notice of Claim was served against all municipal entities and Plaintiffs have complied with all conditions precedent to bringing these actions.

21. That a hearing under GML 50H took place on November 2, 2021.

22. The claims made by the Plaintiffs come under one or more of the exceptions to joint and separate liability pursuant to CPLR §1600.

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST & IMPRISONMENT

23. Plaintiffs **ILONA LOYTERSHTEYN** and Infants **J.L.** and **A.L.** repeats and reiterates the allegations contained in paragraphs “1” through “17” herein.

24. That the Defendants knew or should have known that they did not have probable cause to arrest the Plaintiff and that the charges planned to be filed against her were unsubstantiated and false.

25. As a result of the action of the Defendants herein, Plaintiff **ILONA LOYTERSHTEIN** was falsely arrested, imprisoned and detained by the defendants without probable cause.

26. That the Defendants had intended to confine and detain the Plaintiffs.

27. That the Plaintiffs were conscious and aware of the arrest, the confinement and the detaining.

28. That the Plaintiffs did not consent to the Defendants actions.

29. That the Defendants actions were not privileged, in any way

30. As a result of the aforesaid, Plaintiff **ILONA LOYTERSHTEIN** seeks damages for false arrest in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A SECOND CAUSE OF ACTION
ASSAULT & BATTERY

31. Plaintiff **ILONA LOYTERSHTEIN** repeats and reiterates the allegations contained in paragraphs “1” through “17” herein.

32. As a result of the aforesaid, Plaintiff **ILONA LOYTERSHTein** was caused to be assaulted by the Defendants without due cause.

33. That Plaintiff was, without just cause or reason, was grabbed, touched, handcuffed, searched and/or otherwise contacted by Defendants police officers, including Defendant **P.O. ALEXIS REALENEGO** while acting in the performance of his/their duties as police officers.

34. That all said contact was committed without Plaintiff's permission or consent. That all said contact was unlawful and without privilege.

35. That all contact committed by Defendant, **CITY OF NEW YORK**, through their agents, servants, and/or employees, including the above Defendant **ALEXIS REALENEGO** was offensive to the Plaintiff and caused her to fear further contact and imminent harm, and caused Plaintiff annoyance, alarm and/or suffering.

36. That the above acts committed by the Defendants constituted an assault and/or battery of the Plaintiff.

37. As a result of the aforesaid, the Plaintiff was damaged and seeks a recovery for assault and use of excessive force in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A THIRD CAUSE OF ACTION
EXCESSIVE & UNREASONABLE FORCE

38. Plaintiff **ILONA LOYTERSHTein** repeats and reiterates the allegations contained in paragraphs "1" through "23" herein.

39. Plaintiff was injured as a result of the force used by the Defendants herein.

40. Defendants were negligent in the manner in which they came in contact with the Plaintiff, causing Plaintiff unjustifiable harm.

41. That the Defendants law enforcement personel used excessive force in the course of the arrest, investigatory stop, or other pre-arraignment seizure under U.S. Const. amend. IV and its standard of objective reasonableness

42. As a result of the aforesaid, Plaintiffs seek damages for negligence in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A FIFTH CAUSE OF ACTION
VIOLATION OF USC 1983

43. Plaintiffs **ILONA LOYTERSHTEYN** and Infant-Plaintiffs **J.L.** and **A.L.** repeat and reiterate the allegations contained in paragraphs "1" through "27" herein.

44. As a result of the aforesaid, Plaintiff's constitutional rights both state and federal were violated, including but not limited to, Article 14 of the Constitution and Section 1983 of the U.S. Code.

45. All of the aforementioned acts of Defendant **THE CITY OF NEW YORK** by and through, their agents, servants and employees, were carried out under the color of state law.

46. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United of America, and in violation [*47] of 42 U.S.C. § 1983.

47. The acts complained of, including the false arrest of the Plaintiff, were earned out by the aforementioned individual Defendants in their capacities as police officers under the color of law, with all of the actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the

supervision of ranking officers of said department, including but not limited to Alexis Realenego.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. As a result of the aforesaid conduct by Defendants, Plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely arrested, falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

51. As a result of the forgoing, Plaintiff was deprived of liberty, suffered emotional distress, loss of property, cost and expenses and was otherwise damaged and injured. As a result of the foregoing, Plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

52. As a result of the aforesaid, Plaintiff seeks damages and legal fees as mandated by the state and federal statutes. As a result of the aforesaid, Plaintiff seeks damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR THE SIXTH CAUSE OF ACTION
NEGLIGENCE

53. Plaintiffs **ILONA LOYTERSHTEYN** and Infant-Plaintiffs **J.L.** and **A.L.** repeat and reiterate the allegations contained in paragraphs "1" through "27" herein.

54. That the Defendants owed all of the Plaintiffs a duty of care which required them "to use that degree of care that a reasonably prudent person would have used under the same circumstances.

55. As a result of the aforesaid, the Defendants breached their duty of care to the Plaintiffs.

56. That the Defendants acts and/or omissions were the proximate cause, or a reasonably close connection between a Defendants wrongful acts and the Plaintiffs injury and damages.

57. That the Plaintiffs sustained injuries and damages, as a result of the Defendants acts and/omissions.

58. That the Plaintiffs injuries and damages were a foreseeable result of the Defendants negligence.

59. That as a direct result of Defendants negligence, Plaintiffs **ILONA LOYTERSHTEYN** and Infant-Plaintiff **J.L. and A.L.** suffered severe damages in an amount to be determined by the trier of fact including, but not limited to, punitive damages, attorneys fees and any costs associated in connection with this action

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF FOR RELIEF UNDER NEW YORK STATE LAW: NEGLIGENT HIRING,
TRAINING, SUPERVISION AND RETENTION**

60. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.

61. That **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** were negligent, careless and/or reckless or deliberately indifferent in the hiring, training, retention, supervision, direction, control, appointment, monitoring, discipline and/or promotion of the their agents, servants, and/or employees, including but not limited to the named defendant police officers, in that said employees lacked the experience and ability to be employed by the **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE**

DEPARTMENT or employed in the capacity to which they were assigned on all relevant dates herein; in failing to exercise due care and caution in their hiring, appointment and promotion practices, and in particular, hiring individuals, retaining, assigning and/or promoting defendant officers who lacked the training, or mental capacity, ability and/or temperament or moral compass to function as employees of said Defendants; in that the Defendant-employees lacked the maturity, sensibility, integrity and intelligence to be employed by said Defendants; in that said defendants knew of the lack of ability, experience and maturity of the Defendant-employees when they hired them, retained them, assigned them and promoted them, in that said Defendants, their agents servants and/or employees, failed to suspend and/or terminate the Defendant-employee(s) when such action was either proper or required; and in being otherwise careless, negligent and reckless in the instance.

62. The failure of the **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** to adequately train their agents, servants and employees, including but not limited to the Defendant police officers, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the Charter, rules and regulations of the City of New York and the United States Constitution and their own Patrol Guide, is evidence of the reckless lack of cautious regard for the rights of the public in general and plaintiff in particular, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

63. The **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** knew or should have known in the exercise of reasonable care, the propensities of their agents, servants and employees, including but not limited to the Defendant police officers, to engage in the wrongful conduct heretofore alleged in this Complaint.

64. The **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** knew or should have known that their policies, customs and practices, as well as their negligent hiring, retention, supervision training, appointment and promotion of their agents, servants and employees, including but not limited to the Defendant police officers, created an atmosphere where the most prominent offenders felt assured that their most brazen acts of abuse, misconduct and neglect would not be swiftly and effectively investigated and prosecuted.

65. That the mistreatment and abuse of the Plaintiff, as set forth above, was the reasonably foreseeable consequence of said Defendant's negligent conduct.

66. The aforesaid acts of the **CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and employees, resulted in the Plaintiff being harassed, intimidated, threatened, searched, assaulted, battered, falsely detained, arrested and imprisoned, and his civil rights being violated.

67. As a result of the foregoing, Plaintiff is entitled to compensatory damages, costs and disbursements

AS AND FOR THE EIGHTH CAUSE OF ACTION
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

68. Plaintiffs **ILONA LOYTERSHTEYN** and Infant-Plaintiffs **J.L.** and **A.L.** repeat and reiterate the allegations contained in paragraphs "1" through "27" herein.

69. That the Defendants actions, described above constituted extreme and outrageous conduct.

70. That the Defendants evinced intent to cause severe emotional distress to the Plaintiffs.

71. That there is a causal connection between the Defendants wrongful conduct and the injury and damages suffered by the Plaintiffs

72. That as a direct result of the Defendants wrongful acts and omissions, the Plaintiffs suffered severe emotional distress.

73. That the Defendant **CITY OF NEW YORK** and the Defendants **NEW YORK CITY POLICE DEPARTMENT** by and through the actions of its employees, agents or subagents, to wit Police Officers **ALEXIS REALENEGO** negligently arrested PLAINTIFF, when they had duty of care to avoid arresting persons who they knew, or should have known, that she did not commit any crimes, and engaged in negligent conduct which is not expected or to be tolerated in a civilized society.

74. That due to Defendant **CITY OF NEW YORK**'s, **NEW YORK CITY POLICE DEPARTMENT** and its Police Officers' negligent and outrageous conduct, the PLAINTIFF'S physical safety was endangered in that she was injured in mind and body, still suffers and upon information and belief, will continue to suffer extreme and great mental pain, and she was rendered severely emotionally and mentally distressed and so remains.

75. That such extreme and outrageous conduct shocks the conscious and PLAINTIFF demands damages there from each defendant acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to PLAINTIFF. The acts and conduct of the defendants were the direct and proximate cause of injury and damages to PLAINTIFF and violated PLAINTIFF'S statutory and common law rights as guaranteed PLAINTIFF by the laws and Constitution of the State of New York.

76. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

77. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFFS
HAMED FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

78. Plaintiffs **ILONA LOYTERSHTEYN** and Infant-Plaintiffs **J.L.** and **A.L.** repeat and reiterate the allegations contained in paragraphs “1” through “27” herein.

79. That the Defendant **CITY OF NEW YORK**, by and through the actions of its employees, agents or subagents, to wit the Defendants Police Officers engaged in extreme and outrageous conduct, namely the aforementioned false arrests and imprisonments, with the intent to cause, or with the intentional disregard of a substantial probability of causing, severe emotional distress to the PLAINTIFFS.

80. That due to the Defendant **CITY OF NEW YORK** 's extreme and outrageous conduct, by and through the actions of its employees, agents or subagents, to wit the aforementioned Defendant Police Officers, PLAINTIFFs were injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress.

81. That such extreme and outrageous conduct shocks the conscious, is not expected or to be tolerated in a civilized society, and PLAINTIFFS demand damages therefrom.

82. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

83. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs seek judgment against the Defendants on the First, Second, Third, Fourth and Fifth, Sixth, Seventh, and Eighth and Ninth Causes of Action in the amount of

ONE MILLION (\$1,000,000.00) DOLLARS, each, together with punitive damages, costs and attorney fees and the disbursements of this action.

Dated: Brooklyn, New York
November 3, 2021

Yours, etc.

Law Offices of William Pager
Attorneys for Plaintiff(s)
A.L., AN INFANT BY MOTHER AND
NATURAL GUARDIAN ILONA
LOYTERSHTEYN, AND J. L., AN INFANT BY
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COUNTY OF KINGS

A.L., AN INFANT BY MOTHER AND NATURAL GUARDIAN ILONA LOYTERSHTEYN,
AND J. L., AN INFANT BY HIS MOTHER AND NATURAL GUARDIAN ILONA
LOYTERSHTEYN, AND ILONA LOYTERSHTEIN INDIVIDUALLY

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND P.O. ALEXIS
REALENEGO

Defendant(s).

SUMMONS AND COMPLAINT

Law Offices of William Pager
Attorneys for Plaintiff(s)
203-205 Kings Highway
Brooklyn, New York 11223
Phone: 718-998-1010
Fax: 718-998-8046

PLEASE TAKE NOTICE

That the within is a true copy of a _____ entered in the office of the clerk of the within
named Court on _____

That a _____ of which the within is a true copy will be presented for settlement to the Hon.
One of the Judges of the within named Court at _____ on
at 9:30 a.m.

Due and timely service of the within _____ is hereby admitted

Dated: _____

X _____

Attorneys for